

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 19, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 7	25CV457348	Immigrant Rights Defense Council, LLC et al vs Shamsher Brar	Motion to Compel Responses to Form Interrogatories & Sanctions Scroll down to Line 7 for Tentative Ruling.
LINE 8	23CV411676	Brian Claire vs Manuel Groto et al	Motion for Reconsideration This motion is specially set and CONTINUED to June 29, 2026 1:30 p.m. in Dept. 18. Parties need not refile moving papers associated with this motion.
LINE 9	23CV427505	Steve McHarris vs City of Milpitas	Motion to Tax Cost This matter is CONTINUED to September 15, 2026 9:00 a.m. in Dept. 1. This case is pending two separate appeals before the Sixth District Court of Appeal, case numbers H053453 and H053878. Plaintiff filed this motion to tax cost on July 21, 2025, opposition papers were filed by the defendant on May 6, 2026. Plaintiff/moving party filed a reply brief on May 11, 2026 requesting that the court defer ruling until an appellate decision is finalized.

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9:01 A.M.			
LINE 1	24CV428731	Sharad Gupta vs Omar Bernabe et al	Order of Examination Parties to appear.
LINE 2	26CV487717	26CV487717	Order of Examination Parties to appear.
LINE 3	23CV426238	Jaiden Holland vs Jennifer Chapman et al	Minor's Compromise Parties to appear.

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9:00 A.M.

Calendar Line # 2

Case Name Gary Cayton et al vs El Camino Hospital et al

Case No. 24CV442138

Motion to Strike

Before the court is defendant El Camino Hospital's motion to strike portions of plaintiffs' first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On or about June 30, 2023, Gary Cayton ("Decedent") was admitted to defendant El Camino Hospital (erroneously sued as El Camino Hospital d/b/a El Camino Health Los Gatos; hereafter, "Hospital") due to restlessness and after being unable to urinate. (First Amended Complaint ("FAC"), ¶22). At the time of admission, Decedent had limited mobility, was of advanced age, and had multiple complex medical diagnoses that made him unable to care for his own needs, thus dependent upon and requiring the assistance of defendant Hospital's staff for his activities of daily living, including toileting, bed mobility, transfers, and hygiene. (FAC, ¶¶22 – 23).

Defendant Hospital represented to Decedent and his family that it was able, knowledgeable, and sufficiently staffed to care for Decedent in light of his high-risk conditions. (FAC, ¶24). Decedent and his family relied on defendants' representations when it selected defendants' facility to provide care for Decedent. (*Id.*).

Plaintiff alleges that Defendant Hospital's staff did not provide proper pressure ulcer prevention protocol to Decedent. (FAC, ¶26). Decedent developed severe pressure ulcers to his sacrum/ coccyx area. (FAC, ¶25). Defendant Hospital failed to properly treat and heal those pressure ulcers. (FAC, ¶¶27, 39, 40). Decedent's sacral wound started out small but, due to lack of treatment, grew to a stage 4 pressure ulcer. (FAC, ¶29).

Decedent complained to defendant Hospital staff of extreme abdominal pain on or about June 30, 2023. (FAC, ¶32). Decedent underwent surgery for a hernia and abscesses in his abdomen becoming wholly dependent on defendant Hospital's staff for his care needs. (*Id.*). Plaintiff alleges that Defendants' staff failed to assist Decedent with his toileting and hygiene needs leaving him in his feces for long periods on multiple occasions. (FAC, ¶33).

Per Plaintiff, Decedent stopped eating to avoid bowel movements to avoid having to lay in his own feces because he knew nursing staff would not properly care for him. (FAC, ¶35). As a result, Decent lost weight and dropped to 125 pounds. (*Id.*).

On multiple occasions, defendants' staff ignored Decedent's call light and left Decedent unassisted for extended periods of time. (FAC, ¶36). Decedent's feeding tube became infected because defendants' staff withheld care and refused to properly clean the tube and properly care for it. (FAC, ¶37). Decedent developed numerous unexplained bruises during his residence at defendant Hospital. (FAC, ¶38).

Decedent's condition deteriorated significantly and he died on August 20, 2023. (FAC, ¶41).

On June 28, 2024, Decedent, by and through his successors in interest, Monica Cayton and Jolie Higgins ("Plaintiffs") filed a complaint against defendant Hospital, among others, asserting causes of action for:

- (1) Negligence
- (2) Violations of the Elder and Dependent Adult Civil Protection Act
- (3) Wrongful Death

On July 14, 2025, Plaintiffs filed the now operative FAC which asserts causes of action for:

- (1) Negligence